

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Mic Braun	Team: Squad #05	CCRB Case #: 202301867	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Saturday, 03/04/2023 10:10 PM	Location of Incident: § 87(2)(b) [REDACTED] § 87(2)(b) [REDACTED]	18 Mo. SOL 9/4/2024	Precinct: 71		
Date/Time CV Reported Mon, 03/06/2023 10:11 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 03/06/2023 10:11 AM		

Complainant/Victim	Type	Home Address
[REDACTED]	[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]	[REDACTED]

Witness(es)	Home Address
[REDACTED]	[REDACTED]

Subject Officer(s)	Shield	TaxID	Command
1. CPT Maggie Clamp	00000	940990	017 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. DTS Robert Rivera	01224	929046	071 PCT
2. PO Hunter Nuzzi	27359	972142	071 PCT
3. PO Joel Torres	03111	970897	071 PCT
4. PO Christopher Rodriguez	04501	964733	071 PCT
5. LT Melissa Clark	00000	932472	071 PCT
6. SGT Andrew Rosen	03640	953342	071 PCT
7. PO Jason Schreckenstein	01340	956247	071 PCT
8. PO Jeffrey Rosa	26080	964259	071 PCT
9. PO Omar Delarosa	06614	964474	071 PCT

Officer(s)	Allegation	Inv. Div. Recommendation
A . CPT Maggie Clamp	Abuse: Captain Maggie Clamp entered § 87(2)(b) [REDACTED] in Brooklyn.	A . Substantiated
B . CPT Maggie Clamp	Abuse: Captain Maggie Clamp searched § 87(2)(b) [REDACTED] in Brooklyn.	B . Substantiated
C . CPT Maggie Clamp	Abuse: Captain Maggie Clamp issued an unlawful summons to § 87(2)(b) [REDACTED]	C . Substantiated
D . CPT Maggie Clamp	Abuse: Captain Maggie Clamp issued an unlawful summons to § 87(2)(b) [REDACTED]	D . Substantiated
E . CPT Maggie Clamp	Abuse: Captain Maggie Clamp issued an unlawful summons to § 87(2)(b) [REDACTED]	E . Substantiated

Officer(s)	Allegation	Inv. Div. Recommendation
F . CPT Maggie Clamp	Abuse: Captain Maggie Clamp issued an unlawful summons to § 87(2)(b)	F . Substantiated
G . CPT Maggie Clamp	Abuse: Captain Maggie Clamp issued an unlawful summons to § 87(2)(b)	G . Substantiated
H . CPT Maggie Clamp	Abuse: Captain Maggie Clamp issued an unlawful summons to individuals.	H . Substantiated

Case Summary

On March 6, 2023, § 87(2)(b) and an anonymous individual each filed complaints about this incident by phone with the CCRB.

On March 4, 2023, at approximately 10:10 p.m., numerous officers from the 71st Precinct arrived at § 87(2)(b) in Brooklyn. Capt. Maggie Clamp instructed officers to enter and search § 87(2)(b) storefront at that location (**Allegations A-B: Abuse of Authority, substantiated**). Capt. Clamp instructed officers to issue multiple unlawful summonses for open containers of alcohol to § 87(2)(b) § 87(2)(b) § 87(2)(b) § 87(2)(b) § 87(2)(b) and additional unidentified individuals (**Allegations C-H: Abuse of Authority, substantiated**).

The investigation obtained BWC footage (**BR 01-04, summarized in BR 05-06**). All references to video refer to the timestamp in the video player and not to the on-screen timestamp.

Capt. Clamp has since been reassigned to the 17th Precinct.

Findings and Recommendations

Allegation (A) Abuse of Authority: Captain Maggie Clamp entered § 87(2)(b) in Brooklyn.

Allegation (B) Abuse of Authority: Captain Maggie Clamp searched § 87(2)(b) in Brooklyn.

Allegation (C) Abuse of Authority: Captain Maggie Clamp issued an unlawful summons to § 87(2)(b)

Allegation (D) Abuse of Authority: Captain Maggie Clamp issued an unlawful summons to § 87(2)(b)

Allegation (E) Abuse of Authority: Captain Maggie Clamp issued an unlawful summons to § 87(2)(b)

Allegation (F) Abuse of Authority: Captain Maggie Clamp issued an unlawful summons to § 87(2)(b)

Allegation (G) Abuse of Authority: Captain Maggie Clamp issued an unlawful summons to § 87(2)(b)

Allegation (H) Abuse of Authority: Captain Maggie Clamp issued an unlawful summons to individuals.

§ 87(2)(b) testified (**BR 07**) that he closed his store at 8 p.m. to hold a private event. A private security guard manned the locked door and unlocked it for people to come in. There were four bottles of tequila on the display counter and red Solo cups, though the alcohol was not being served. There were approximately 30 people present, playing board games and filming skits. No one was drinking outside. § 87(2)(b) was unsure whether people were drinking inside. Music was playing but was not audible from outside. The venue next door was hosting a child's birthday party, and it was playing loud music which could be heard from outside. Some people were leaving that venue with red Solo cups in their hands. Multiple officers arrived and shut down the party next door. They then entered § 87(2)(b) store and issued summonses for open containers to five people.

§ 87(2)(b) testified (**BR 08**) that he came to § 87(2)(b) store for a private game night. The store was closed at the time and the door was locked during the event. There were double-parked cars outside, which § 87(2)(b) believed belonged to the people at the venue next door.

A couple of bottles of alcohol were on the counter but were not readily visible, and people might have brought their own alcohol. No one was serving the alcohol. He was not drinking alcohol and did not have a red Solo cup, yet he was issued a summons for an open container of alcohol. He believed that officers issued summonses without checking whether the recipients had been drinking. He was not sure how many people were issued summonses. Officers requested ID from five people standing around the alcohol counter but did not issue them summonses.

The investigation did not interview any other victims as their identities were only obtained from NYPD documentation near the conclusion of the investigation, at which point their testimony was not necessary to reach dispositions for these allegations.

Capt. Clamp's BWC footage #2 (**BR 03, at 01:07**) captures her standing outside of the location. There are a number of people standing outside § 87(2)(b) store. Capt. Clamp tells Sgt. Andrew Rosen, "I want you to do a quick business inspection here," and points to the store. She tells him that she does not know what is going on, that people are drinking, and someone said that there is a party. She approaches § 87(2)(b) asking, "What is this?" and he says that the location is a convenience store, but someone is holding a birthday party there. Capt. Clamp tells him that the music is an issue, and that people are drinking outside. § 87(2)(b) tells her that the music cannot be heard. The BWC audio does not capture loud music coming from the store. At 01:35, Capt. Clamp asks Sgt. Rosen, "We're going inside?" and he responds affirmatively. At 01:44, an individual dressed as a security guard exits the store. Sgt. Rosen enters the store with other officers, and the door closes after them. At 02:08, Capt. Clamp attempts to open the door, and someone standing outside tells her that the door locks when it is closed. The door is buzzed open for her. An individual is captured standing right outside the store with a red Solo cup in his hand. No one else outside appears to have such cups. At 02:27, Capt. Clamp tells Det. Rivera, "See how many people—there is no alcohol license in there, so everyone gets a C-summons." She tells § 87(2)(b) and his co-owner that officers are conducting a business inspection. § 87(2)(b) tells her that they are closed and a private event is taking place. The owners ask Capt. Clamp about the kind of business inspection, and she explains that officers are addressing concerns because people are drinking inside, and there are double-parked cars outside, and there is loud music. She adds that there are people drinking outside. The individual dressed as security is standing outside the location. At 07:02, Capt. Clamp asks if it is a business, and § 87(2)(b) responds affirmatively. She asks if they have the authority to sell or serve alcohol. § 87(2)(b) responds that they are not selling any and their store is closed. He says that someone rented out the space for an event. Capt. Clamp says that the officers are ensuring that that is the case. She asks about the name of the location and the kind of merchandise that they sell. At 09:45, Capt. Clamp uses the NYPD radio code for the issuance of a summons to ask Sgt. Rosen, "96?" He says, "Yeah. Two of them are dealing with the guys that are serving."

Det. Rivera's BWC footage (**BR 04, at 04:44**) captures an illuminated "Open" sign on the storefront window. At 05:00, Det. Rivera tells PO Torres, in reference to Capt. Clamp, "She wants a C-summons." At 05:49, the counter with alcohol bottles is visible. People are seated around a long folding table, which has various board games set out. At 08:07, Det. Rivera informs Sgt. Rosen that there is alcohol in the back. He then tells Lt. Clark in Spanish, in an apparent reference to Capt. Clamp, that "she wants them to take everyone." He then says in English that "she" wants to get IDs from everyone in the back. He then announces, "ID, everyone." PO Torres, PO Schreckenstein, and PO Rosa request identification from people standing near the alcohol counter. Det. Rivera ultimately issues open container violation summonses for two people sitting behind the counter. The officers leave without confiscating the alcohol.

Capt. Clamp testified (**BR 09**) that her attention was drawn to the location because she saw various

double-parked cars and heard loud music coming from two adjacent locations. She saw people exiting the storefront with red Solo cups in their hands, indicating to her that there was alcohol inside the cups. Capt. Clamp had no prior knowledge about the location, such as whether it was a business, its name, or what was being sold. The owner told her that it was a store. Capt. Clamp saw someone wearing an all-black outfit with the word “security,” and this indicated to her that people might be drinking alcohol inside, so she decided to enter and conduct a business inspection. Capt. Clamp believed that the location was open to the public because people were coming in and out, the lights were on, music was playing, and security was present. This inspection involved determining whether the store was selling alcoholic beverages, checking for underaged drinking, and telling them to lower the music. Capt. Clamp did not know if the location was legally allowed to serve alcohol. An inspection could take place at any time so long as officers believed that the location was open to the public. No paperwork was prepared for the inspection and no alcohol was confiscated. Officers have the authority to conduct a business inspection whenever they observe violations occurring outside. Someone opened the door of the location from the inside. The officers entered and investigated the fact that people had red Solo cups. Capt. Clamp did not know if officers asked anyone for ID. Sgt. Rosen told her that those serving alcohol were being issued criminal summonses for it. Officers also issued summonses to people drinking alcohol, but Capt. Clamp did not know if the summonses were specifically for violating the open container law.

Throughout her interview, Capt. Clamp was asked multiple times whether she ever instructed officers to issue criminal summonses, and she did not provide a clear answer, repeatedly testifying that she “asked them to address the condition,” by which she was referring to any violation that officers observed. She finally testified that she did not recall if she instructed any officers to issue summonses regarding the alcohol. She was not directly involved in issuing any summonses, as she remained outside. After reviewing her BWC footage, when asked what she meant by, “There’s no alcohol license...so everyone gets a C-summons,” she first answered that the summonses would be issued if sales were happening inside. She then testified that she asked officers to assess and address the conditions, which they were doing by conducting a business inspection. She was referring to, “Whoever officers observed drinking outside and then returned inside.” After numerous attempts by the investigation to obtain a direct answer, Capt. Clamp ultimately failed to clarify exactly which violators she was referring to with the word “everyone.” She did not recall if anyone was issued a summons specifically for drinking alcohol while inside the store.

Det. Rivera testified (**BR 10**) that he received a call from Sgt. Rosen, who told him that Capt. Clamp wanted multiple officers to come to the location to conduct a business inspection. He was not provided any information regarding the type of inspection or why it was being conducted. Once the officers briefly looked around inside the location, Capt. Clamp made a general statement to the officers and said to issue everyone a criminal summons because the store had no alcohol license. She did not give any other orders. Her instruction was clear that she wanted the officers to issue summonses to everyone inside who had an open container and was drinking inside the location. No other supervisors ever instructed Det. Rivera or other officers to issue summonses for open containers. Det. Rivera did not know why summonses were ultimately issued to only a fraction of the people inside. Det. Rivera could not estimate how many people he observed drinking alcohol, but a lot of people had red Solo cups in their proximity. He went up to a glass counter and saw multiple closed bottles of alcohol on top, as well as an open 1.75-liter bottle of rum. Two men were behind the counter within arm’s reach of the alcohol, and they had red Solo cups in front of them. Due to their proximity to the alcohol, he requested their identification and issued one summons to each of them.

It is clear from the BWC footage that, notwithstanding her CCRB testimony, Capt. Clamp did give an explicit order to officers to issue criminal summonses for people drinking inside the location.

Commercial properties belonging to a legitimate business owner are entitled to Fourth Amendment protections, except in those areas of the business which are open to the public. *People v. Ortiz*, 138 Misc. 2d 486 (Crim. Ct., New York Co. 1988) (**BR 11**). NYPD Patrol Guide Procedure 214-23 (BR 14), Operations Order No. 3 – General Enforcement Guidelines At Premises Where Social Events/Parties Are Held (1/2/2019) (BR 32), and the Legal Bureau Civil Enforcement House Party Infographic #3, 02/19 (BR 15) provide guidance for assessing whether an event is occurring within premises that are open to the public. If the event is occurring within a commercial establishment that is open for business, then it is considered open to the public. Similarly, advertisements inviting the general public to the event, an open, unmanned gate, and the free flow of people coming and going from the property are indications that the event is open to the public. On the other hand, a premises that has closed doors, locked gates, or invitation-only entry indicates that only invited guests are permitted entry and that the owner and/or residents of the premises have an expectation of privacy.

PGP 214-23, Op. Order No. 3, and the Legal Bureau Infographic further instruct that officers may enter and take enforcement at an event that is open to the public, such as a public party at a commercial establishment which is not licensed by the New York State Liquor Authority to sell or serve alcoholic beverages. However, if the event is being held in a private location which is not open to the public, then officers generally need consent or emergency or exigent circumstances to enter without a warrant. Consent may be given by any responsible person who is in control of the event and is free to invite other guests in. Commanding officers should determine whether a warrantless entry is permissible based on the type of premises and determine if exigent circumstances exist that would authorize a warrantless entry. Unreasonable noise by itself does not constitute emergency or exigent circumstances. Commanding officers should contact the Legal Bureau to address any questions regarding the legality of warrantless entry into a premises. When practical, before taking enforcement action for house party and noise enforcement, efforts should be made to speak to the host to resolve conditions. Securing the cooperation of the event host is always preferred. In the event that officers do take enforcement action, they should consider whether alcohol is being sold, if the premises are being operated as an unlicensed bottle club, if unlicensed security guards are being employed, if unreasonable noise is being made, and whether sound reproduction devices are being used.

The courts have recognized an exception to the warrant requirement for inspections of “pervasively regulated” and “closely regulated” businesses. Such businesses include those licensed to serve alcohol. *New York v. Burger*, 482 U.S. 691 (1987) (**BR 12**).

No person shall drink or consume an alcoholic beverage, or possess, with intent to drink or consume, an open container containing an alcoholic beverage in any public place. A public place is defined as areas to which the public has access. NYC Administrative Code §10-125 (BR 16).

§ 87(2)(g)

the BWC footage shows that even after gaining entry, she simultaneously continued to say that the officers were conducting a “business inspection” while also stating aloud that the location was not licensed to serve alcohol.

§ 87(2)(g)

§ 87(2)(g)

Furthermore, it was apparent that the door was closed and required a buzzer to unlock, that there was at least one individual acting as a security guard, and that people could not enter without approval. § 87(2)(g)

it is recommended that **Allegations A-B** be closed as **substantiated**.

§ 87(2)(g)

The BWC footage shows that Capt. Clamp broadly instructed that “everyone” inside the store should “get a C-summons.” § 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegations C-H** be closed as **substantiated**.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) § 87(2)(b) § 87(2)(b) and § 87(2)(b) have been a party (BR 17-22).
- Capt. Clamp has been a member of the NYPD for 17 years and has been a subject in 12 CCRB complaints and 17 allegations, of which two were substantiated:
 - Case 202200570 involved one substantiated allegation of entry of premises against Capt. Clamp. The Board recommended Command Discipline B, but the NYPD took no disciplinary action.
 - Cases 202300764, 202300769, and 202307973 are still pending investigation.
 - § 87(2)(g)

Mediation, Civil, and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- As of September 7, 2023, the New York City Office of the Comptroller has no record of a Notice of Claim being filed regarding this incident by § 87(2)(b) or § 87(2)(b). As of December 19, 2023, the New York City Office of the Comptroller has no record of a Notice of Claim being filed regarding this incident by § 87(2)(b) § 87(2)(b) § 87(2)(b) or § 87(2)(b) (BR 23-25).

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

RPBP History

- This complaint did not contain any allegations of Racial Profiling/Bias-Based Policing.

Squad: 5

Investigator:	<u>Mic Braun</u>	<u>Inv. Mic Braun</u>	<u>February 1, 2024</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>Daniel Giansante</u>	<u>IM Daniel Giansantete</u>	<u>February 1, 2024</u>
	Signature	Print Title & Name	Date

Reviewer:	<u></u>	<u></u>	<u></u>
	Signature	Print Title & Name	Date